

**NON-PROFIT BYLAWS
OF
SANKALP MARATHI MANDAL**



Sankalp Marathi Mandal

Norfolk County, MA

A 501 C 3 Organization

Revision History

Revision	Change	Date	Author/Reviewer
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PREAMBLE

The following Bylaws shall be subject to, and governed by, the Non-Profit Corporation Act of Massachusetts and the Articles of Incorporation of **Sankalp Marathi Mandal**. In the event of a direct conflict between the herein contained provisions of these Bylaws and the mandatory provisions of the Non-Profit Corporation Act of Massachusetts, said Non-Profit Corporation Act shall be the prevailing controlling law. In the event of a direct conflict between the provisions of these Bylaws and the Articles of Incorporation of Corporation/Organization, it shall then be these Bylaws which shall be controlling.

ARTICLE 1 NAME

The legal name of the Non-Profit Corporation/Organization shall be known as “**Sankalp Marathi Mandal Corporation**”, and shall herein be referred to as the “**SMM**”.

The tag line of the organization shall be “**Ek Sankalp Marathi Japanyacha**” meaning “**A resolution to preserve Marathi culture and language**”

The name of the school (**Shala**) operated by SMM shall be “**Sankalp Marathi Shala**” and shall herein be referred to as the “**SMS**”.

Section 1. LOGO

The usage of SMM logo by anyone other than Executive team shall be approved by SMM president in writing for any communication or advertisement purpose. SMM logo or banner shall be clearly displayed on the website and any program conducted either solely or jointly by SMM.

Section 2. OFFICIAL LANGUAGE OF COMMUNICATION

The official language of communication for the corporation shall be **Marathi** and **US English**.

ARTICLE 2. MISSION AND GOALS:

The mission of Sankalp Marathi Mandal is to passionately safeguard and celebrate the rich cultural heritage of the Maharashtrian community, fostering a sense of pride, unity, and connection among its members.

Section 1. GOALS: To support this mission, SMM shall pursue the following goals:

- To offer a cultural platform for Marathi-speaking families and students within the Massachusetts/New England region to celebrate major festivals together.
- To voluntarily offer language learning assistance to children of the Indian American community to help them preserve the Marathi language through the Sankalp Marathi Shala program.
- To collaborate with other organizations to achieve the corporation's goals and serve the community.
- To maintain communication with all potential Indian American Marathi families through digital media, such as email, WhatsApp, or other platforms, to offer a community platform.

Section 2. LIMITATIONS: The corporation is organized exclusively for charitable and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code. No substantial part of the corporation's activities shall involve carrying on propaganda or otherwise attempting to influence legislation. The corporation shall not participate in, or intervene in (including the publishing or distribution of statements), any political campaign on behalf of or in opposition to any candidate for public office.

Section 3. NON-INUREMENT: No part of the net earnings of the corporation shall inure to the benefit of, or be distributable to, its Directors, officers, or other private persons. The corporation shall be authorized to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of its purposes.

Section 4. EQUAL OPPORTUNITY: Sankalp Marathi Mandal does not discriminate on the basis of race, color, religion, sex, national origin, disability, age, sexual orientation, or gender identity in any aspect of its operations or service delivery.

ARTICLE 3 OFFICES

The principal office of the Corporation/Organization shall be located in the **Norfolk County, in the State of Massachusetts.**

The Corporation/Organization may have other such offices as the governing committee may from time to time determine or as the affairs of the Corporation/Organization may find a need for from time to time, provided that any permanent change of address for the principal office is properly reported as required by law.

ARTICLE 4 DEDICATION OF ASSETS

The properties and assets of the Corporation/Organization are irrevocably dedicated to and for non-profit purposes only. No part of the net earnings, properties, or assets of this Corporation/Organization, on dissolution or otherwise, shall inure to the benefit of any person or any member, director, or officer of this Corporation/Organization. On liquidation or dissolution, all remaining properties and assets of the Corporation/Organization shall be distributed and paid over to an organization dedicated to non-profit purposes which has established its tax-exempt status pursuant to Section 501(c)(3) of the Internal Revenue Code, or the corresponding Section of any future federal tax code, or shall be distributed to the federal government, or state or local government for public purpose.

ARTICLE 5. NON-MEMBER CORPORATION AND COMMUNITY PARTICIPANTS

Section 1. FOUNDERS' RECOGNITION AND TRANSITION: SMM recognizes its Founders for their foundational contributions. The Board of Directors shall have the discretion to honor founders in a manner it deems appropriate. During the first five (5) years following the date of incorporation, at least one Founder shall serve on the Board of Directors. After this period, Founders may continue to serve in any leadership role subject to the regular nomination and election processes for the Board of Directors.

Section 2. NON-MEMBER CORPORATION: In accordance with Massachusetts General Laws, SMM shall be a non-member corporation. All corporate powers, voting rights, and fiduciary duties are vested in the Board of Directors.

Section 3. COMMUNITY PARTICIPANTS:

The corporation may recognize individuals who join SMM and support its mission as Community Participants. Community Participants are non-voting supporters of the corporation and are not considered members for purposes of Massachusetts nonprofit law.

Section 4. VIRTUAL COMMUNITY

Community Participants may be invited to join a virtual community, such as through WhatsApp or other digital platforms, for communication and engagement. The governance of this virtual community and approval of digital platforms shall be an administrative matter determined by the EC/Board of Directors.

The organization/corporation as such welcomes anyone speaking/familiar with Marathi language and preferably Massachusetts/New England region as state of residence, as Sankalp Community member. The members are grouped together virtually through WhatsApp (or any other suitable digital media as available in future and approved by Executive Committee) here in after referred as **SMM Virtual Community**, with their own request and consent to join the community.

The Virtual Community membership is at will and free, however this may change in future as decided by Executive Committee adhering to the bylaws.

The members can further join the other groups within community as per their interest such as fitness, sports, financial discussion etc. Any information shared within the community forums/groups shall be considered for information purpose only and each member should do his/her own due diligence to interpret it further and/or for decision making.

The members shall not have any voting rights except for the polls as deemed appropriate by the SMM Executive Committee towards event planning, community interest and other statal reasons as decided by the Executive Committee and approved with majority.

Community member shall voluntarily participate in in-person events, programs organized by SMM or Partnered with Other organization by paying contribution/fees as decided time to time by SMM office bearers.

The corporation further decides the guidelines for Virtual Community to maintain healthy communication within members, as well as timely notifying about community events. This shall be applicable by default to any further sub community/discussion forum started by the office bearers.

Rules of Virtual Community

- Stay on topic: Keep discussions relevant to the community's purpose or theme.
- Respect diversity: Be considerate of differing opinions and backgrounds within the community. Avoid any form of discrimination, harassment, or offensive language
- Avoid Political Discussions: Avoid political campaign on behalf of or in opposition to any candidate for public office.

- Event Notifications: Pay attention to the event notification, enrollment, due dates as published by office bearers.
- Avoid Marketing: Avoid self-promotion, marketing for profit, focus on contributing to the community with only exception for Market Place forum.
- Constructive criticism: Provide feedback in a respectful and constructive manner.
- Information Sharing: Share relevant updates and information that benefit the entire group.
- No spam: Refrain from posting repetitive or irrelevant content that may disrupt the chat.
- Spread the Good & Help others: Contribute positively by answering questions and assisting fellow community members.
- Members should not post any personally identifiable information (PII) on any of the community forum.
- Sharing information about other events should be done with the consent of SMM office bearers.

Every community member shall respect and adhere to the guidelines as revised and published time to time and set forth by Executive Committee. All such members including and members showing up for in person community events shall be considered in good standing.

Section 5. KEY VOLUNTEERS

Any non-board/non-officer volunteer who has significant responsibility over organizational assets, program spending, financial decision-making, or publicly represents the organization in an official capacity. A key volunteer may be appointed as a voting or non-voting member of the Executive Committee per the organization's needs and as specified in these bylaws.

Section 6. REVOKING COMMUNITY MEMBERS

Community members not in good standing in terms guidelines defined in Section 4 shall be subject to warning by Executive Committee. The office bearers shall have rights to revoke any member from virtual community not in good standing with or without prior notification.

ARTICLE 6 BOARD OF DIRECTORS

Section 1. Authority

The Board of Directors shall be the governing body of SMM in accordance with MGL Ch. 180.

The Board shall have fiduciary responsibility for the affairs of the Corporation, including oversight of finances, programs, and compliance with applicable state and federal laws.

Section 2. Composition

The Board of Directors of the Corporation shall consist of at least three (3) individuals, which requirement shall be satisfied at all times who has served organization at least 5 years as office bearers. For initial terms, the office bearer and Founding Members shall collectively constitute the Board of Directors, provided that this composition complies with the minimum requirements of Massachusetts law. Additional Directors may be elected by the Board.

Section 3. Duties

The Board of Directors shall:

1. Ensure that the mission of SMM is carried out in alignment with its charitable purposes under §501(c)(3).
2. Approve major policies, budgets, and strategic plans.
3. Appoint and remove officers in accordance with these bylaws.
4. Safeguard against private benefit and conflicts of interest.

Section 4. Reserved Rights of Founders

During the first five (5) years following incorporation, Founders shall retain the reserved right to (a) ensure representation on the Board, and (b) review proposed amendments to these bylaws. After this period, such reserved rights may be revisited by the Board or amended through these bylaws.

The Founding Members retain reserved rights to approve or veto any nomination to the Board of Directors, to ensure mission alignment.

Mission Protection – Veto authority over any action of the Board of Directors or Executive Committee that is determined by the Founding Members to be inconsistent with the mission, vision, or core values of SMM.

The entire Executive Committee is subject to the provisions of these bylaws, authority and responsibility to see that the policies and directives are appropriately followed.

ARTICLE 7 EXECUTIVE COMMITTEE AND OFFICERS

Section 1. MANAGEMENT OF THE CORPORATION

The corporation shall be managed by the **Executive Committee** here in after also referred as **EC**. The committee shall consist of at least 5 and up to 11 members (odd number), consisting at least one founding member.

The executive team shall have President, Vice President (Optional), Secretary, Treasurer, Principal as office bearers with individual responsibilities as set in the following Sections of this Article 7.

Each Executive committee member shall be at least 22 years of age. It is required that office bearers (viz. President, Secretary, Treasurer) shall have served on SMM Executive Committee at least for 1 full term previously and must have gained knowledge/experience about the working structure of the organization.

The Executive Committee shall consist of elected officers and may include key volunteers, appointed by the Board or EC for their expertise, dedication, or leadership roles. Key volunteers appointed to the EC must adhere to all policies and disclosures required of officers and directors, including the annual Conflict of Interest Statement.

The principal shall have served as Sankalp Shala teacher/exam coordinator (or as teacher/exam coordinator on the Sankalp Marathi Shala for at least for 1 full term/school year before taking up the office bearer position.

Office bearers, EC members or volunteers of the organization should not use SMM website, social media account(s), email account(s) to further personal and/or business gains for self- and/or other organizations without written approval from the corporation office bearers.

Any SMM EC member should NOT be holding a committee member position of another organization or active volunteer, performer, artist at another organization, if that organization also serves similar community of Indian American Marathi Families to similar interest like SMM (E.g., Marathi Theater (Natak) / Music / Entertainment, Marathi Education, Cultural events etc.).

Each Committee Member shall provide a refundable deposit of **\$250** to the Organization at the time of appointment. The purpose of this deposit is to maintain organizational liquidity and ensure availability of operating funds.

This deposit shall:

1. Be recorded as a **liability** of the Organization, **not as income**.
2. Be refundable, without interest, upon the conclusion of the member's term of service, or upon earlier resignation or removal.
3. Be refunded from the Organization's regular operating account within sixty (60) days of the effective date of such conclusion, resignation, or removal.
4. Not be held in escrow, but maintained within the Organization's general funds, subject to standard accounting controls.

The Treasurer shall be responsible for recording, maintaining, and refunding such deposits.

The office bearers, Board of directors, Founding member and EC members shall have admin permissions to manage the Virtual Community Platform through digital media.

SMM has established and distinguished itself on the below core values over the period which shall become the organization core values going forward.

- No membership fees/obligation, welcoming everyone.
- Affordable event fees.
- Personal connect, Personal attention to new members.
- Be supportive
- Help Students
- Knowledge sharing
- Visiting Parents engagement

Each EC member is encouraged and expected to reflect the core values while performing their duties and during community events. Try to connect with most possible community members and shall offer warm welcome to new members, students during in person events. All the executive members should be approachable by community members.

The office bearers shall consist of following:

SUB Section 1. President

The president shall be the chief executive officer of the corporation; President shall preside at all meetings of the committee members and of the office bearers; he/she shall have the general management of the affairs of the corporation and shall see that all orders and resolutions of the committee are carried into effect. The president shall be the only authorized spoke-person responsible to present the vision and goals of the corporation to the community members and other organizations.

The President role shall include the following duties and any other duties that are aligning to organization mission.

1. Along with rest of the executive committee prepare the event calendar for a year and make it available to community members
2. Overall planning and assign responsibilities to other executive members for strategic preparation to ensure all community events are carried out efficiently, safely and adhering to the event premises by local law and SMM by laws.
3. Allocate tentative budget for a year and per event by discussing with EC.
4. Collaborate with other non-profit organization to participate in larger events that aligns with SMM goals and mission.
5. Identify and engage potential sponsors vendors preferably on annual basis than per event. The president shall appoint a dedicated person to look after sponsors engagement, prepare sponsorship plans and execution of those plans along with other subcommittee/members looking after the event management.
6. Ensure SMM logo, banners are displayed at each event and in partner events where SMM is officially partnering.
7. Apart from regular annual/cultural events explore opportunities for one new event during the term as per community interest to server one of the mission goals.
8. Identify potential sources of funds, take an active role in enhancing the Committee/Board awareness of fundraising opportunities.
9. Explore opportunities for enhanced public relations and fundraising, and provide an annual review of the performance of the Organization's fundraising plan.

SUB Section 2. Vice President (Optional)

In the absence of the President, or in the event of his/her inability or refusal to act, it shall then be the responsibility of the Vice President to perform all the duties of the President, and in doing so shall have all authority and powers of, and shall be subject to all of the restrictions on, the President. Apart from this Vice President shall be the event/program manager for overall coordination within the Community and Executive Committee.

Sub Section 3. Secretary (Chief Information Officer)

The Secretary, or his/her designee, shall be the custodian of all records and documents of the Corporation/Organization, which are required to be kept at the principal office of the Corporation/Organization, and shall act as secretary at all meetings of the Executive committee, and shall keep the minutes of all such meetings on file in hard copy or electronic format. S/he shall attend to the giving and serving of all notices of the Corporation/Organization and shall see that the seal/logo of the Corporation/Organization, if any, is affixed to all documents, the execution of which on behalf of the Corporation/Organization under its seal/logo is duly authorized in accordance with the provisions of these bylaws. Apart from these Secretary shall be responsible for

1. Act as a point of contact for internal and external communication for the corporation/organization.
2. Ensure the EC teams operate within the scope of these bylaws from time to time.
3. Protect all the digital assets of the organization including any personal data that is collected during the event planning.
4. Ensure the data such as contact; email should be used only for communication purpose back to community members.
5. Make sure the SMM Website is updated time to time to reflect events, bylaws, office bearers.
6. Ensure Virtual Community Forum guidelines are updated in group description.
7. Ensure deleting temporary forums created for event planning.
8. Publish event registration/feedback forms on timely manner.
9. Record the poll results from virtual community not to lose them.
10. Keep the books of records for Sankalp Marathi Shala enrollments as received form Shala Committee or working with Shala Principal and volunteers.
11. Shall ensure timely filing of the Corporation's annual report and any other documents required by the Massachusetts Secretary of the Commonwealth and the IRS.

Section 4. Treasurer (Chief Financial Officer)

It shall be the responsibility of the Treasurer to keep and maintain, or cause to be kept and maintained, adequate and accurate accounts of all the properties and business transactions of the Corporation/Organization, including accounts of its assets, liabilities, receipts, disbursements, gains, losses, capital, retained earnings, and other matters customarily included in financial statements.

The Treasurer shall be responsible for ensuring the deposit of, or cause to be deposited, all money and other valuables as may be designated by the Executive Committee. Furthermore, the Treasurer shall disburse, or cause to be disbursed, the funds of the Corporation/Organization, as may be ordered by the Executive Committee.

1. The treasurer shall have the care and custody of all the funds and securities of the corporation, and shall deposit said funds in the name of the corporation in such bank or trust company as the office bearers may elect;
2. s/he shall, when duly authorized by the office bearers, sign and execute all contracts in the name of the corporation, when countersigned by the president;
3. s/he shall also sign all checks, drafts, notes, and orders for the payment of money, which shall be duly authorized by the office bearers and shall be countersigned by the president and keeping the necessary receipts for records.
4. s/he shall at all reasonable times exhibit his books and accounts to any office bearer or member of the executive committee up on request.
5. At the end of each quarter and corporate year, s/he shall have an audit of the accounts of the corporation made by a committee appointed by the president and shall present such audit in writing at the annual meeting of the executive committee, at which time s/he shall also present an annual report setting forth in full the financial conditions of the corporation.
6. The treasurer shall get the quarterly audits done within 10 days of the quarter end except for the annual report which must be done prior to December 31 of the corporate calendar year.

The treasurer shall maintain, including but not limited to, all corporation related important documents such as MOUs, contracts, receipts regularly backed up on an external secure storage drive or site for the period of 7 years for audit purpose and passed down to the next incoming treasurer at the hand-off meeting between in-force and incoming committees.

7. Ensure the Marathi Shala enrollment fees is received and reconcile with Principal.
8. Prepare annual and event wise budget, provide options for making payment for event fees, registration to community members through appropriate payment channels.
9. Deposit vendors, sponsors and other donations received to SMM bank account.

The Treasurer shall give the Corporation/Organization a bond, if so requested and required by the Board of Directors, in the amount and with the surety or sureties specified by the Board for faithful performance of the duties of the Treasurer's office and for restoration to the Corporation/Organization of all its books, papers, vouchers, money and other property of every kind in the Treasurer's possession or under the Treasurer's control upon the Treasurer's death, resignation, retirement, or removal from office. The Corporation/Organization shall pay the cost of such a bond.

Section 5. Shala Principal (Chief Operating Officer for Shala)

The principal shall be the chief operating officer of the Sankalp Marathi Shala and all its branches as SMM may have or setup in the future.

1. Setting up the vision and the goals for the Sankalp Marathi Shall (SMS) shall be the responsibility of the principal along with other Shala stakeholders from SMM executive committee;
2. S/he shall have the general management of the affairs of the SMS, which may include financial operations, and shall see that all orders and resolutions of the committee that are related to SMS are carried into effect.
3. S/He shall be responsible to implement and execute the SMS policies, procedures, curriculum, and examination schedules, where applicable, uniformly across all SMS branches following the Bruhan Maharashtra Mandal curriculum or any other framework as suitable to meet the short term and long-term goals.
4. Identify and appoint Shala teaching volunteers from community through appropriate evaluation.
5. Communicate enrollment timelines, prepare school calendar and publish in advance to parents.
6. Plan and decide school enrollment fees and propose it to EC for due approval.
7. Principal shall officially represent Sankalp Marathi Mandal on Bruhan Maharashtra Mandal Marathi Shala committee and have access and/or possession of all Sankalp Marathi Shala educational materials and property to ensure smooth operations of Sankalp Marathi Shala.
8. This shall be the SMM committee position that has off-cycle tenure from the current committee in force for that calendar year typically ranging the tenure from January 1st to December 31st.
9. Ensure SMM and SMS logos are displayed at all the Shala events, flyers.
10. The principal shall explore sponsors, donations for Shala events and connect them with Executive team for due approval and onboarding.
11. Ideate and Leading cultural events for SMS on the occasion of Marathi festivals.

Section 2: TERM OF OFFICE BEARERS

The term of the executive team members shall be 2 years and shall commence on the Date of Bylaws establishment with exception for the SMS Principal as described in earlier Section to align with Shala Year.

Each member can only serve for a maximum of 10 years in the executive committee and each officer can serve for maximum of 4 years in the office bearer position but not holding the same position in consecutive terms. The Shala Principal officer is exception for this to continue for 4 years in consecutive term.

Each office bearers shall hold office until the expiration of the term for which he/she was elected and until his/her successor has been elected and shall have qualified, or until his/her prior resignation or removal.

Section 3: ELECTION of Executive Committee and Officers

Amendment: The Board of directors shall have the exclusive authority to appoint and approve all Executive Committee members, Office Bearers, and Subcommittee Leaders. The Executive Committee may recommend candidates through its nomination process, but no appointment shall be valid without the approval of a majority of the Board of directors and Founding members.

Unless otherwise provided for in the certificate of incorporation, the Board of directors and existing Executive Committee may elect or appoint a president; a vice-president, a secretary, a treasurer, Principal and such other officers as it may determine who shall have such duties, powers and functions as hereinafter provided.

All office bearers shall be elected or appointed to hold office until the Annual meeting of the current committee at the end of term.

The candidates search shall be performed by asking community members to fill in their interest to join executive team through online survey/feedback during the in-person events of the community. Proactive or short-listed candidates by Executive Committee shall meet the below criteria to be eligible.

Eligibility:

- The candidate must be member of the organization virtual committee since at least last 2 year, and have been attending most of the community events and shall be in good standing.
- The candidate has done the volunteering for SMM org or it's initiatives
- The candidate shall have good fluency of Marathi language (speaking, reading, writing).
- Must be of 25 years and above.
- The candidate should be in good terms as per defined in ARTICLE 5 and in supporting organization mission and goal.

The executive committee shall conduct the voting for new candidates and officer positions. In the event less candidates are identified than the min required and any of the existing members wish to continue his/her position shall able to do that with consensus vote.

Except for the very first term, in order to be eligible for any of the office bearer positions a candidate must have been part of EC at least for one term.

Section 4: NEWLY CREATED OFFICE BEARER POSITIONS AND VACANCIES

Newly created office bearer positions resulting from an increase in the number of office bearers and vacancies occurring in the committee for any reason except the removal of office bearers without cause may be filled by a vote of the majority of the committee then in office unless otherwise provided in the certificate of incorporation. Vacancies occurring by reason of the removal of office bearer without cause shall be filled by vote of the other office bearers. An office bearer elected to fill a vacancy caused by resignation, death or removal shall be elected to hold office for maximum up to the unexpired term of his predecessor.

Section 5: REMOVAL OF OFFICE BEARER

Amendment: Any or all Office Bearers may be removed by majority vote of the Board or directors and Founding Members, with or without cause. Cause may include, but is not limited to, non-fulfillment of duties, misconduct, theft, or misrepresentation of the organization. In such cases, the Founding Members' decision shall be binding on the Executive Committee. Vacancies resulting from removal shall be filled through appointment by the Founding Members.

Any or all of the office bearers may be removed for cause by action of EC/Founding member. Office bearers may be removed due to nonfulfillment of the required duties, misconduct, theft and misrepresentation of our organization all by clear majority (two third) vote of EC at the Special General meeting called for this purpose.

In the event of the death, resignation or removal of an officer, the committee in its discretion may elect or appoint a successor to fill the unexpired term.

Section 6: RESIGNATION

An office bearer or executive committee member may resign at any time by giving written notice to the committee, the president, or the secretary of the corporation. Unless otherwise specified in the notice, the resignation shall take effect upon receipt thereof by the committee or such officer, and the acceptance of the resignation shall not be necessary to make it effective. The person shall be responsible to outline a fair timeline and transition plan, as governed and outlined by the local law, in case of his/her resignation. The SMM president shall become the default but interim owner of the unoccupied office bearer position Based on the remaining tenure and criticality of the position SMM committee shall work to seek nominations for the position following Article 6 Section 2 of the by-laws to conduct an off-cycle election if required and permitted by the local laws.

Section 7: QUORUM OF COMMITTEE

Unless otherwise provided in the certificate of incorporation, a majority of the entire committee shall constitute a quorum for the transaction of business or any specified item of business. Additionally, at least 2/3 EC member (including President) are required for motions and voting related transactions.

Section 8: ACTION OF THE COMMITTEE

Unless otherwise required by law, the vote of a majority of the committee members present at the time of the vote, if a quorum is present at such time, shall be the act of the committee. Each committee member present shall have one vote. The votes of the committee shall be recorded either by electronic voting or documented in the minutes by the secretary of the corporation.

Section 9: PLACE AND TIME OF COMMITTEE MEETINGS

The committee may hold its meetings virtually through electronic media or in person, as it may from time to time determine. The secretary shall send the agenda of the meeting prior to the meeting and must document the minutes for archival and audit purpose. In absence of secretary, the President shall nominate another committee member present to take minutes. The secretary shall get the minutes of the meeting approved by committee before archival. The AGM shall be scheduled in person and only a member having valid reasons shall be allowed to join over the electronic media. The EC shall meet once every month as per the schedule defined by EC beginning of the term. The EC shall meet personally for monthly meeting and in person for Quarterly meeting.

Meetings may be held in person or by any means of remote communication, provided all participants can communicate contemporaneously.

Section 10: REGULAR ANNUAL GENERAL MEETING (AGM) of EC

A regular annual general meeting of the EC of the corporation shall be held preferably in the mid of November of the calendar year based on the most suitable date availability. The President or secretary of the current committee shall serve a notice and agenda of minimum 2 weeks to all EC members, Board of directors and Founding Members.

This shall include but not limited to a) list of positions seeking nominations and qualifying criteria for the positions that the nominations are sought and b) a call for any motions/amendments to the by-laws or guidelines of the corporation along with the voting guidelines and procedures that shall be used to decide the votes on motions/amendments. c) Reporting of financial standings of the organization.

The special AGM if called must follow the same protocol as that of the annual general meeting and there shall be no more than one special AGM in the year other than the yearly AGM.

Sub-Section 1. MOTIONS

The Community members as defined in Article 5 Section 2 are allowed to submit motions for due consideration by the EC. Any such motions shall be submitted to the SMM email address () before end of Oct each year. Alternatively based on the community feedback received for the events Secretary or any EC member can put up a motion on the agenda ahead of AGM. All such motions shall be discussed and voted by all the active EC members either by physical or virtual presence or by any online voting methods approved and used by committee as appropriate for the voting operations. The motions approved by 2/3 majority of the committee votes shall be included in a draft of the by-law's amendment along with their "Justifications and Recommendations" following the guidelines as stated in this By-laws Article VI. This draft and the motions rejected (with the reasons why they were rejected) shall be presented to the general member base of the corporation via any secure sharing method as deemed appropriate by the SMM committee one week prior to AGM. The draft of the motion amendments shall then be presented in the EC AGM approval and voting.

Once By-laws amendments are approved, rejected or restated the secretary of the corporation shall notify the decision of the member base to the submitter of the motion by the means of any official communication as deemed appropriate by the committee in ruling.

In case, any motion is passed with respect to any committee member due to conflict of interest, misuse/abuse of power or any misleading/mis presentation, then that particular committee member shall abstain from voting and also step down from their duties/position with immediate effect until the motion or dispute is resolved. The tasks/duties of this committee member who has stepped down shall be distributed within the committee by mutual consensus of committee members.

Section 11. NOTICE OF MEETINGS OF THE COMMITTEE, ADJOURNMENT

Regular meetings of the committee may be held from time to time based on the availability of the committee members. The meeting should be planned on pre-agreed schedule approved by majority vote or shall be scheduled with 1-2 week notice to all EC members.

A majority of the office bearers present, whether or not a quorum is present, may adjourn any meeting to another time and place.

Notice of the adjournment shall be given to all committee members who were absent at the time of the adjournment and, unless such time and place are announced at the meeting, to the other committee members.

Sub Section 1. Attendance

If committee members fail to actively participate or attend 3 consecutive meetings it may result in removal from the SMM executive committee as approved by the EC with majority vote. The SMM committee can vote with a majority to make exceptions for hardships or emergency situations.

Section 12: CHAIRMAN OF THE MEETINGS

At all meetings of the committee, the president or in his absence, vice-president/secretary chosen by the committee shall preside.

Section 13: SPECIFIC TASK AND OTHER SUB-COMMITTEES

The office bearers, by resolution adopted by a majority of the entire committee, may designate from among its members a specific task committee and other sub-committees, each consisting of one or more committee members. Each such sub-committee shall serve at the pleasure of the executive committee.

Section 14: SURETIES, BONDS AND OPERATIONS

In case the committee shall so require, any officer or agent of the corporation shall execute to the corporation a bond in such sum and with such surety or sureties as the committee may direct, conditioned upon the faithful performance of his duties to the corporation and including responsibility for negligence and for the accounting for all property, funds or securities of the corporation which may come into his hands.

SMM committee shall keep 60% of the corporation funds as the reserve funds and use up to 40% of the funds remaining for the day-to-day operations. Any withdrawal from the reserve funds shall require a 2/3 major vote within executive committee. At the end of every financial year the treasurer of the corporation shall maintain this ratio of the reserve to operational funds as directed by the SMM committee in force that year before presenting the balance sheet of the organization in the AGM. The management of the funds in same or discrete financial institutions however shall be in control of the treasurer on behalf of the SMM committee in force that year.

Section 15: INDEMNIFICATION AND LEGALITY

Sub-Section 1. General

This Section is applicable to all SMM /SMM events, Sankalp Marathi Shala Operations, activities or initiatives and covers, all but not limited to, SMM founding members, SMM committee members, SMM members, SMS teachers and volunteers.

To the full extent authorized under the laws of the STATE OF MASSACHUSETTS, the corporation shall indemnify any officer, committee member, founding member, or volunteer agent, or former officer, committee member, or volunteer of the corporation, or any person who may have served at the corporation's request as a director or officer of another corporation (each of the foregoing members, directors, officers, employees, agents, and persons is referred to in this Article individually as an "indemnatee"), against expenses actually and necessarily incurred by such indemnatee in connection with the defense of any action, suit, or proceeding in which that indemnatee is made a party by reason of being or having been such member, director, officer, employee, or agent, except in relation to matters as to which that indemnatee shall have been adjudged in such action, suit, or proceeding to be liable for negligence or misconduct in the performance of a duty. The foregoing indemnification shall not be deemed exclusive of any other rights to which an indemnatee may be entitled under any bylaw, agreement, resolution of the committee, or otherwise.

Sub-Section 2. Expenses

Expenses (including reasonable attorneys' fees) incurred in defending a civil or criminal action, suit, or proceeding may be paid by the corporation in advance of the final disposition of such action, suit, or proceeding, if authorized by the committee, upon receipt of an undertaking by or on behalf of the indemnatee to repay such amount if it shall ultimately be determined that such indemnatee is not entitled to be indemnified hereunder.

Sub-Section 3. Insurance

The corporation may purchase and maintain insurance on behalf of any person who is or was a member, founding member director, officer, employee, or agent against any liability asserted against such person and incurred by such person in any such capacity or arising out of such person's status as such, whether or not the corporation would have the power or obligation to indemnify such person against such liability under this Article.

ARTICLE 8 SUB COMMITTEES

The Shala Principal may recommend the appointment of teachers, examination coordinators, or volunteers; however, the final authority for approval and removal of such individuals shall rest with the Founding Members.

The Executive Committee may, from time to time, and by resolution adopted by a majority of the EC Member then in office provided that a quorum is present, designate one or more committees to exercise all or a portion of the authority of the EC, to the extent of the powers specifically delegated in the resolution of the EC or in these Bylaws. Each such committee shall consist of at least one (1) Executive Committee member who shall act as Leader for the subcommittee, and may also include persons who are not on the EC but whom the EC

believe to be reliable and competent to serve at the specific committee. However, committees exercising any authority of the EC may not have any non-committee members.

Forming of any such committee shall be approved by EC by a vote of majority and should align with organization goals. Marathi Shala is one such subcommittee at the time of incorporation of SMM.

Section 1: MANAGEMENT OF THE SCHOOL

The Sankalp Marathi Shala shall be managed by the Principal as the COO of the sub-committee. The SMS shall follow Bruhan Maharashtra Mandal (BMM) Marathi Shala guidelines, as applicable by SMM by-laws, and the curriculum or any other framework as determined in future and approved by EC to offer best learning experience. All teachers and other volunteers of Shala shall be Community member and must be voluntary to serve for the greater cause. Parents of the students shall be the family members of the Community. The principal may appoint one or more Examination Coordinators to conduct the BMM certification examinations in a fair and acceptable environment. Any BMM certification examinations conducted by the examination coordinator shall be conducted at one central location and by the same set of examiners to provide uniform results for the students.

Parents shall be in its whole entity responsible for the location rent and any incidental expenses related to Sankalp Shala including but not limited to room rent, field trips, book cost, and exam fees if any and this shall be covered in the annual Shalla fees that is collected from parents. The principal shall be responsible to determine the shala fees and applicable for revision every school year, the fees determined shall be approved by the SMM EC with majority

vote. Sankalp Marathi Shala fees will be non-refundable unless a partial refund or full refund is approved by the SMM committee by majority voting for exception cases presented by Principal.

ARTICLE 9 FISCAL YEAR

The fiscal year for this Corporation/Organization shall end on December 31.

ARTICLE 10 AMENDMENTS AND REVISIONS

These Bylaws may be adopted, amended, or repealed by a two-thirds majority of the Executive Committee then in office. Such action is authorized only at a duly called and held meeting of the Executive Committee for which written notice of such meeting, setting forth the proposed bylaw revisions with explanations therefore, is given in accordance with these Bylaws. If any provision of these Bylaws requires the vote of a larger portion of the Board

than is otherwise required by law, that provision may not be altered, amended or repealed by that greater vote.

ARTICLE 11 CORPORATE/ORGANIZATION LOGO

The Executive team shall adopt, use, a corporate/organization logo as prepared at the time of incorporation and agreed up on by founding members. The LGOG shall be used on all the printed official documents of the organization. Failure to affix the seal to any corporate/organization instrument, however, shall not affect the validity of that instrument.

ARTICLE 12 CONSTRUCTION AND DEFINITIONS

Unless the context otherwise requires, the general provisions, rules of construction, and definitions contained in the Non-Profit Corporation Act as amended from time to time shall govern the construction of these Bylaws. Without limiting the generality of the foregoing, the masculine gender includes the feminine and neuter, the singular number includes the plural and the plural number includes the singular, and the term "person" includes a Corporation/Organization as well as a natural person. If any competent court of law shall deem any portion of these Bylaws invalid or inoperative, then so far as is reasonable and possible (i) the remainder of these Bylaws shall be considered valid and operative, and (ii) effect shall be given to the intent manifested by the portion deemed invalid or inoperative.

The foregoing By-Laws were discussed, reviewed and agreed upon by the existing operating team in effect from Jan 2024, furthermore the bylaws are adopted by the existing office bearers of Sankalp Marathi Mandal after final review on the 25 August 2025 and shall be into effect herein after. This shall precede any appointed director, officer bearers appointed as of the formation of the corporation.

Appendix C: Compliance Addendum

Compliance Addendum to Bylaws

This Compliance Addendum supplements the adopted Bylaws of Sankalp Marathi Mandal. It is intended to address specific requirements of the Massachusetts Nonprofit Corporation Act and IRS Section 501(c)(3) regulations to ensure continued good standing and compliance.

1. Membership Clarification

Community Members as defined in Article 5 of the Bylaws shall not be considered statutory members under Massachusetts General Laws, Chapter 180. They do not possess voting rights with respect to the corporate governance of the organization.

2. Minimum Board Requirement

In compliance with Massachusetts law, the Corporation shall at all times maintain a minimum of three (3) Directors. The Executive Committee shall ensure that this requirement is satisfied in each term of governance.

3. Private Benefit Restriction

No part of the activities of the Corporation shall be conducted for the benefit of private interests. No portion of the Corporation's net earnings shall inure to the benefit of any director, officer, member, or private individual, except as reasonable compensation for services actually rendered in furtherance of the exempt purposes.

4. Financial Practices

No Director, Officer, or Member shall receive compensation for services as a Director or Officer, except for reimbursement of reasonable expenses.

Voluntary contributions may be made by Directors, Officers, or Members. Such contributions shall not be refundable, nor construed as loans or debts of the Corporation.

All funds shall be maintained in the Corporation's name, and at least two officers shall be signatories on financial accounts.

6. Recordkeeping and Inspection

Corporate records, including Articles of Incorporation, Bylaws, minutes of meetings, and financial statements, shall be maintained at the principal office of the Corporation.

Corporate records shall be maintained at the principal office and shall be open to inspection by any Director as required under M.G.L. Chapter 180.

7. Fiscal Controls and Transparency

The Corporation shall adopt fiscal control policies that include: dual signatures on checks above a set threshold, timely audits as already provided in the Bylaws, documented

reimbursement procedures, and annual financial reporting to the Executive Committee and Founding Members.

8. Whistleblower Protection

The Corporation shall maintain a Whistleblower Protection Policy ensuring that any member, officer, or volunteer who raises concerns in good faith regarding financial impropriety, conflicts of interest, or violations of law shall not be retaliated against.

Appendix D: Conflict of Interest Policy

1. Purpose

This policy ensures that the decisions of Sankalp Marathi Mandal (SMM) are made in the best interests of the organization and not influenced by personal interests. It is intended to supplement but not replace any applicable state or federal laws governing conflict of interest applicable to nonprofit and charitable organizations.

2. Definition of Conflict of Interest

A conflict of interest arises when a board member, officer, or committee member has a personal interest, financial or otherwise, in any contract, transaction, or other matter being considered by the board or committee.

3. Disclosure of Conflicts

Every board member, officer, and key volunteer must promptly disclose any factual or potential conflict of interest to the Executive Committee and/or Board of Directors. This includes:

Any personal or financial relationship with vendors, partners, grantees, event sponsors, or contractors.

A family relationship (spouse, sibling, parent, child, grandchild, in-law, domestic partner).

Other organizational or business interests that could bias judgment.

All checks or withdrawals above \$1,000 (or other established threshold set by Board resolution) must be signed by at least two (2) authorized officers, one of whom shall be the Treasurer or President.

4. Procedures for Addressing the Conflict

The interested person must leave the meeting while the matter is discussed and voted upon.

The remaining committee or board will determine by majority vote whether a conflict exists.

If a conflict exists, the committee or board will seek an alternative vendor/arrangement. If one is not reasonably available, they may approve the transaction if they determine it is in SMM's best interest.

All decisions and discussions related to the conflict will be documented in the meeting minutes.

5. Records and Minutes

Meeting minutes will include:

- The name of each person who disclosed or was found to have a conflict.
- The nature of the conflict.
- Actions taken to address or resolve the conflict, including exclusion from decisions.

6. Compensation

No voting board member shall vote on any matter relating to their own compensation.

Any compensation for bona fide professional services must be determined by a majority of disinterested board members.

7. Annual Statements

Each board member, officer, and key employee must annually sign a statement affirming:

They have received and read the Conflict of Interest Policy.

They agree to comply with the policy.

They understand SMM is charitable and must engage primarily in activities that accomplish one or more charitable purposes.

All SMS funds are assets of SMM and are subject to the same audit and reporting requirements as other SMM funds.

8. Violations of the Policy

If it is believed that an individual has failed to disclose an actual or possible conflict of interest, the Board or Executive Committee shall inform that person and allow an opportunity for explanation. If a violation is confirmed, disciplinary action may include removal from office/board.

9. Review and Adoption

This policy shall be reviewed by the Board at least once every three years and upon onboarding of new directors. Adoption and amendments require a majority vote.

A “key volunteer” is a volunteer identified by the Board or EC as holding significant decision-making authority or program leadership. If a key volunteer is also an EC member, they are subject to all provisions of this Policy and annual statements, in the same manner as EC members or officers.

Appendix E: Sankalp Marathi Shala (SMS) Charter

(A Subcommittee of Sankalp Marathi Mandal)

1. Purpose & Mission

The Sankalp Marathi Shala (SMS) exists to:

- Preserve and promote the Marathi language and culture among children of the community.
- Provide structured education following the Bruhan Maharashtra Mandal (BMM) curriculum or an equivalent framework.
- Engage parents and families in cultural activities that support the mission of Sankalp Marathi Mandal (SMM).

2. Alignment with Sankalp Marathi Mandal

- SMS is a core initiative of SMM and shall always operate as its subcommittee.
- SMS shall follow the vision, values, and governance framework of SMM.
- All SMS operations, policies, and programs must align with SMM bylaws and require approval from the Founding Members and Executive Committee (EC).

3. Governance & Roles

- **Principal (COO of Shala):**
 - Provides overall leadership for SMS.
 - Recommends teacher and volunteer appointments.
 - Prepares the annual school calendar and enrollment plan.
- **Teachers & Volunteers:**
 - Expected to follow the SMS curriculum and uphold the core values of SMM.
- **Parents & Students:**
 - Must be community members in good standing.
 - Active participation in cultural programs is strongly encouraged.

4. Financial Management

- All SMS income (fees, donations, sponsorships) shall flow through SMM's official accounts.
- The Treasurer of SMM ensures transparent recordkeeping and reporting.
- Fees are set annually by the Principal in consultation with the EC and must be approved by the SMM office bearers.

5. Branding & Representation

- SMS must use the official SMM name and logo on all communication, flyers, and certificates.
- SMS is not a separate legal entity and cannot represent itself independently of Sankalp Marathi Mandal.

6. Accountability & Reporting

- The SMS Principal shall provide quarterly updates to the EC and Founders.
- Reports must include enrollment numbers, financial updates, event outcomes, and teacher/volunteer status.
- An annual review of SMS shall be presented at the SMM AGM.

7. Adherence to Curriculum

- Teachers must follow the SMS curriculum aligned with the BMM framework or another approved structure.
- Teachers are expected to stay updated on curriculum changes while maintaining cultural integrity and respect for Marathi traditions.
- Any deviations from the curriculum must be pre-approved by the Principal.

8. Teaching Standards

- Teachers are responsible for preparing lesson plans, assignments, and examinations that reflect the educational goals of SMS and BMM.

9. Communication & Collaboration

- Teachers and volunteers must maintain open, respectful communication with the Principal, parents, and peers.
- Active participation in staff meetings and school-related events is expected.
- Concerns regarding curriculum or student behavior should be addressed directly with the Principal.

10. Cultural and Community Involvement

- Teachers should actively contribute to cultural programs by participating directly or guiding students in their preparation.

11. Professional Development

- Teachers are encouraged to attend workshops, training sessions, and other opportunities for growth offered by BMM.

12. Attendance and Timeliness

- Teachers and volunteers must adhere to the school calendar and arrive on time for classes, meetings, and events.
- Planned absences must be communicated to the Principal in advance.

13. Feedback

- Constructive feedback is encouraged and should be shared respectfully.

14. Amendments to Charter

- Any modifications to this Charter require approval from the Principal, Office Bearers, and Founding Members of SMM.
- This Charter operates as **Appendix E** to the SMM Bylaws and shall be binding upon adoption.

All matters not specifically covered by these Bylaws shall be governed by the Massachusetts General Laws, Chapter 180, and the Articles of Incorporation.